

HOUSE No. 5444

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, May 19, 2026.

The committee on Ways and Means, to whom was referred the Bill relative to civil rights and technology (House, No. 4637), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5444).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to civil rights and technology.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 269 of the General Laws is hereby amended by adding the following section:-

2 Section 20. (a) As used in this section, the following words shall, unless the context
3 clearly requires otherwise, have the following meanings:

4 “Robotic device”, a device capable of locomotion, navigation, movement or flight that
5 operates at a distance from its operator or supervisor based on commands or in response to
6 sensor data, or a combination of both, including, but not limited to, an uncrewed aerial vehicle.

7 “Weapon”, any device designed to threaten or cause death, incapacitation or physical
8 injury to a person, including, but not limited to, firearms, chemical agents or irritants, kinetic
9 impact projectiles, weaponized lasers and explosive devices.

10 (b)(1) It shall be unlawful for any person to knowingly manufacture, modify, sell,
11 transfer, possess or operate a robotic device equipped or mounted with a weapon. Whoever
12 violates this subsection shall be punished by imprisonment in the state prison for not less than

2½ years nor more than 5 years, or in a house of correction for not less than 18 months nor more than 2½ years. The sentence imposed shall not be reduced to less than 18 months, nor suspended, nor shall any person convicted under this subsection be eligible for probation, parole, work release or furlough or receive any deduction from their sentence for good conduct until they shall have served 18 months of such sentence.

(2) Whoever, after having been convicted of an offense under paragraph (1), commits a second offense under this subsection, shall be punished by imprisonment in the state prison for not less than 5 years nor more than 7 years, for a third such offense, by imprisonment in the state prison for not less than 7 years nor more than 10 years and for a fourth or subsequent such offense, by imprisonment in the state prison for not less than 10 years nor more than 15 years. The sentence imposed upon a person, who after a conviction of an offense under this subsection commits a second or subsequent offense under this subsection, shall not be suspended, nor shall any person so sentenced be eligible for probation or receive any deduction from the sentence for good conduct.

(3) Prosecutions commenced under this subsection shall not be continued without a finding or placed on file.

(c) It shall be unlawful for any person, whether or not acting under color of law, to knowingly use a robotic device to: (i) threaten to commit a crime; (ii) criminally harass another person in violation of section 43A of chapter 265; or (iii) physically restrain or to attempt to physically restrain another person. Whoever violates this subsection shall be punished by imprisonment in a house of correction for not more than 2½ years, by a fine of not more than \$1,000 or by both such fine and imprisonment. Whoever, after having been convicted of an

offense under this subsection, commits a second or subsequent offense under this subsection, shall be punished by imprisonment in a house of correction for not more than 2½ years or in a state prison for not more than 10 years, by a fine of not more than \$15,000 or by both such fine and imprisonment.

(d) This section shall not apply to:

(i) the United States department of defense or any of its departments, agencies or units;

(ii) the Massachusetts National Guard;

(iii) a defense industrial company with respect to robotic devices that are within the scope of its contract with the department of defense or that are within the scope of a waiver obtained from the attorney general;

(iv) robotic devices within the scope of a waiver obtained from the attorney general solely for the development or testing of technology intended to detect, prevent or mitigate the unauthorized weaponization of robotic devices; or

(v) robotic devices within the scope of a waiver obtained from the attorney general solely for educational or entertainment purposes.

(e) It shall not be a violation of this section for law enforcement agencies or law enforcement officers, as those terms are defined in section 1 of chapter 6E, acting in the public performance of their duties to possess or operate a robotic device equipped or mounted with a weapon or disrupter technology: (i) to destroy, defuse or dispose of explosives or suspected explosives; (ii) for the destruction of property when there is an imminent threat of death or

serious bodily injury; or (iii) for development, evaluation, testing, education or training relating to the uses permitted by clauses (ii) and (iii).

(f) A law enforcement agency, as defined in section 1 of chapter 6E, shall be required to obtain a warrant or other legally required judicial authorization prior to deploying a robotic device equipped or mounted with a weapon or disrupter technology: (i) onto private property in any situation in which a warrant would be required if the entry onto that property were made by a law enforcement officer; or (ii) to conduct surveillance or location tracking in any situation in which a warrant or other legally required judicial authorization would be required if such surveillance or tracking were conducted by a law enforcement officer or other technology; provided, however, that law enforcement agencies may deploy a robotic device equipped or mounted with a weapon or disrupter technology without a warrant or other judicial authorization in situations where entry on the private property could be made, or surveillance or location tracking could be conducted, by a law enforcement officer or a law enforcement agency without a warrant or judicial authorization.

(g) Any individual may bring a civil action for damages and equitable relief, including, but not limited to, injunctive relief, resulting from a violation of this section or a regulation promulgated under this section in any court of competent jurisdiction. A plaintiff who prevails in an action under this section shall be entitled to an award of reasonable attorneys' fees and costs incurred in connection with said action.

(h) On a quarterly basis, each law enforcement agency shall document, as a public record, each time it uses a robotic device equipped or mounted with a weapon or disrupter technology in a report to the executive office of public safety and security. The report shall include: (i) the date

77 and time of the use; (ii) the scope, target and objective of the use; (iii) whether the robotic device
78 was equipped or mounted with a weapon; (iv) the permitted reason for use; and (v) whether a
79 warrant or other legally required judicial authorization was obtained. Annually, not later than
80 March 31, the executive office of public safety and security shall publish this information on its
81 website.

82 (i)(1) The secretary of public safety and security shall promulgate rules and regulations to
83 administer this section, including rules and regulations related to the permitted uses of robotic
84 devices equipped or mounted with a weapon by law enforcement set forth in subsection (e).

85 (2) The attorney general shall promulgate rules and regulations to implement exemptions
86 authorized in subsection (d), including, but not limited to, authorized waivers pursuant to clauses
87 (iii) to (v), inclusive, of subsection (d).